

23SMCV01290 23SMCV01290

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Case Number: 23SMCV01290 Hearing Date: July 31, 2026 Dept: N

TENTATIVE RULING

Plaintiff David E. Smith's Motion for Summary Adjudication is DENIED.

Plaintiff David E. Smith to give notice.

Plaintiff David E. Smith ("Plaintiff") moves the Court for summary adjudication as to his first cause of action for disgorgement against Defendant/Cross-Complainant Christian Rodolfo Nunez Ramirez ("Defendant") pursuant to Business and Professions Code section 7031, subdivision (b).

Business and Professions Code section 7031, subdivision (b), provides that "a person who utilizes the services of an unlicensed contractor may bring an action in any court of competent jurisdiction in this state to recover all compensation paid to the unlicensed contractor for performance of any act or contract." In the first cause of action, Plaintiff alleges that Defendant performed work at the property from January 2021 to June 2022 that required a proper license, but Defendant lacked such a license, such that Plaintiff is entitled to disgorgement. (Compl. ¶¶ 23-29.)

Plaintiff provides evidence that he hired Defendant to perform construction services, a contractor's license was required to perform the services which Defendant offered to, and did, perform for Plaintiff, and Plaintiff paid Defendant \$1,876,667.20 for unlicensed construction services. (Pl.'s UMF Nos. 1-3.) Defendant opposes the motion with evidence that he was hired in May 2020 to take over the project at Plaintiff's residence at 888 Linda Flora Drive relating to mold remediation, Defendant completed the project in November 2021, Defendant obtained his contractor's license for the business entity Nail It Cosntruction & Remodeling Inc. on April 13, 2022, and Defendant did not complete any work that required a contractor's license between March 23, 2022 and April 13, 2022. (Def.'s UMF Nos. 1-6.)

Plaintiff relies on the declaration of Kane, who states that the work included waterproofing services, reconstruction services following mold remediation, building a deck, and replacing windows, skylights, and kitchen cabinets, along with other improvements. (Mot., Smith Decl. ¶ 6.) However, Defendant argues that this work was completed by November 2021, and although he later returned to the property, he did not perform any work that required a contractor's license, such that Plaintiff's cognizable claim is outside the one-year statute of limitations. Code of Civil Procedure section 340, subdivision (a), provides that "[a]n action upon a statute for a penalty or forfeiture, if the action is given to an individual, or to an individual and the state" has a one-year statute of limitations, "except if the statute imposing it prescribes a different limitation." Plaintiff argues that discovery responses and evidence show that Defendant invoiced Plaintiff for construction work performed after March 23, 2022, including April 2 and 3, 2022, payments were made on April 5 and 10, 2022, and Defendant agreed to perform services in February 3, 2023. (Mot., Rader Decl. ¶¶ 4-7, Exs. B-E; Smith Decl. ¶ 9; Def.'s Exs. A, H.)

Again, Plaintiff alleges that Defendant started work in January 2021 and continued through at least June 2022. (Compl. ¶ 23.) Even if the Court assumed that work was performed during the limitations period without a proper license, summary adjudication would still be improper because Plaintiff seeks disgorgement for work performed and, presumably, money paid outside the one-year limitations period. Plaintiff makes no argument that the work was continuous, instead simply asking the Court to conclude that the work was started in January 2021 and finished inside the limitations period, but the evidence does not make clear that the later work can be considered continuous. Code of Civil Procedure section 437c, subdivision (f)(1), makes clear that "[a] motion for summary adjudication shall be granted only if it completely disposes of a cause of action," which does not occur here if Plaintiff is seeking disgorgement for work outside the statute of limitations. Plaintiff's separate statement is sparse, essentially asking the Court to go through the invoices to look at dates and work performed and determine on its own whether the later work can be considered as remedying problems with the earlier work. For these reasons, Plaintiff David E. Smith's Motion for Summary Adjudication is DENIED.

Evidentiary Objections

Defendant objects to certain statements within the declarations of David E. Smith and Steven L. Rader. Defendant's objections are OVERRULED.

Plaintiff objects to certain statements within Christian Rodolfo Nunez Ramirez's deposition. The Court declines to rule on the objections, as the evidence was not material to the Court's ruling herein.